

Mandate of Joan I to the *justícia* of the *vila* of Morella for an *enquesta* into a homicide

Document Summary

Field	Value
Archival reference	ACA, Cancillería, reg. [to supply], f. 160v-161r
Date	Barcelona, 2 June 1387
Language	Latin (with Catalan interference; see notes)
Document type	Administrative-judicial mandate (<i>manament</i> ordering an <i>enquesta</i> / <i>informació</i>)
Issuing authority	Joan I, king of Aragon (acc. January 1387)
Addressee	The <i>iusticia</i> of the <i>vila</i> of Morella [?] (or his lieutenant)
Subject	Order to conduct a full judicial inquiry into the killing of Iacobus Guiffa [?], a resident of Xiva de Morella, for which Petrus Scriva [?], son of Antonius Scriva [?], stands denounced (<i>delatus</i>), and to transmit a closed and sealed copy of the proceedings
Subscription	Chancery subscription line present (first name struck through, central cross/plus); read per HTR — see note 9

Reconciled Transcription

Editorial conventions: [] = expansion or editorial intervention; [?] = uncertain reading; ¿...? = illegible. Manuscript orthography preserved.

Johannes etc. ffideli nostro iusticie ville Morelle[m] [?] vel eius locumtenenti salut[em] et gra[ciam]. Quia de modo p[er]petracionis necis dudum in p[er]sona Iacobi Guiffa vicini de Xiva [Xiva de Morella] illate p[er]petrat[e] [?], de qua P[etrus] [?] Scriva [?] vicin[us] ville Morelle[m] [?] filius Anthonii Scriva [?] delatus fuyt volum[us] informari. Ideo vob[is] dicim[us] et mandam[us] de certa s[cien]cia et exp[re]sse ¿...? quatenus de p[re]d[i]c[t]is informac[i]one[m] plenaria[m], vocata p[ar]te d[i]c[t]i occisi, Recipiatem [?]

et

eius copia[m] clausam et sigillata[m], ut ei p[er] nos fides adhiberi valeat,
transmittat[is], et hoc differre [?] minime p[re]sumat[is]; nostra sic de certa nostra sciencia
feri volum[us]

et ꝓiubemus? [?]. Dat[a] Barchinone .ij. die junii Anno a nativitate d[omi]ni
M°CCC°LXXX°VII°.

[chancery subscription line — see note 9]

Translation

John,¹ etc., to our faithful *justícia* of the *vila* of Morella² [?], or to his lieutenant, greeting and grace. Whereas, concerning the manner of the perpetration of the killing committed some time ago³ upon the person of Jaume Guiffa⁴ [?], a resident of Xiva de Morella,⁵ of which Pere Escrivà⁶ [?], a resident of the *vila* of Morella [?], son of Antoni Escrivà [?], has been denounced,⁷ we wish to be informed: therefore we say and command to you, of our certain knowledge and expressly, [¿...?], that concerning the aforesaid matters you take⁸ full information — the party of the slain man having been summoned — and that you transmit a copy thereof, closed and sealed, so that faith may be given to it by us; and do not in any way presume to delay this. We will it thus to be done, of our certain knowledge, and [we so command] [?]. Given at Barcelona, the 2nd day of June, in the year from the Nativity of the Lord 1387. [Chancery subscription.]⁹

Key Unresolved Ambiguities

1. **Victim's surname, Guiffa [?]** (line 2). Adjudicated to *Guiffa*, but with an interlinear scribal correction above the word; not fully secure. Verify against the original; check Morella-district notarial/judicial records for a Jaume Guiffa (or near variant).
2. **Accused's name, Petrus / Antonius Scriva [?]** (lines 3–4). Patronymic structure and *delatus* secure; praenomen *Petrus* and surname *Scriva* (Escrivà) plausible but unconfirmed.
3. **The verb after *occisi*, read *Recipiatem* [?]** (bottom block, line 1). Initial capital **R** confirmed; most likely a form of *recipere* governing *informacionem*. HTR *Recipratem* rejected as a non-word. Exact morphology unresolved; functional sense secure.
4. **Material after *de certa sciencia et expresse*** (line 5). A short clause (¿...?) before *quatenus* is illegible; the HTR's *pro primera et secunda inpiombus* is garbled (mixed-language, partly non-Latin) and is not adopted.
5. **The mandate-verb closing the *dispositio*** (read ꝓiubemus? [?], bottom block). Sense is plainly ... *feri volumus et [iubemus/mandamus]*; exact form uncertain. HTR *fiere volumas / inbemiis* are non-words.

6. **Chancery subscription line (note 9).** Personal names taken from HTR per the researcher's instruction; the struck-through first name and the second name both warrant verification against the original.
7. **Register and folio reference.** Register number to be supplied; foliation given provisionally as f. 160v-161r per the working filename.

Resolved (previously open): The line-3 toponym of the victim's residence, formerly read tentatively as *con[uia]* [?], is now identified as **Xiva de Morella**, a *dena* of Morella's municipal area (HTR *xuia* + Stage 1 *xuia* + attested toponym). See note 5.

1. *Johannes etc.* — Joan I of Aragon. The full *intitulatio* (*Dei gracia rex Aragonum...*) is abbreviated to *etc.* in the register copy, as is standard for chancery enregistration. ↵
2. **Morella.** The HTR reads the toponym *Morillem*; against the manuscript I read *ville Morelle[m]* — i.e. the genitive/oblique of *Morella*, the royal *vila* and head of the district of Els Ports in the northern Kingdom of Valencia. Morella held the formal rank of "First Vila of the Kingdom" after Valencia and Xàtiva and was a town of the royal demesne (*realengo*), so a royal mandate addressed to its *iusticia* is fully consistent with the institutional geography. The reading is offered as a probable identification; the precise letter-forms of the toponym warrant confirmation against the original, since *Morelle* / *Morillem* differ in the medial vowels. ↵
3. *dudum* — "some time ago," indicating the homicide was not recent; routine in mandates ordering retrospective inquiry. ↵
4. **Victim's name (Iacobus Guiffa) [?].** The praenomen *Iacobi* (Jaume) is reasonably secure. The surname is read *Guiffa* per the researcher's adjudication. There is an interlinear correction above this word in the manuscript (apparently a scribal *correctio*); the surname should be regarded as not fully secure and is flagged for archival verification. ↵
5. **Toponym of the victim's residence: Xiva de Morella.** The HTR read *de xuia*; my Stage 1 reading was an uncertain *de ¿xuia?*. Both resolve to **Xiva de Morella**, one of the *denes* (ancient subdivisions) of Morella's own municipal area. The reading is now secure on three convergent grounds: the HTR's *xuia*, my independent uncertain *xuia*, and the attested toponym. An earlier hypothesis that the word opened with a *con-* abbreviation (yielding *con[uia]*) is withdrawn: what resembled a *con-* compendium is the initial *x* of *Xiva* with the following minims. Because *Xiva* is a *dena within* Morella's municipal territory — not merely a neighbouring settlement — a *vicinus de Xiva* falls directly under the jurisdiction of the *justícia de la vila de Morella*, which removes any apparent jurisdictional gap and strengthens the internal coherence of the address and *narratio*. ↵
6. **Accused's name (Petrus Scriva, son of Antonius Scriva) [?].** The patronymic structure (... *filius Antonii Scriva*) and the status *delatus* are visible; the praenomen *Petrus* and the surname *Scriva* (Escrivà) are plausible but not confirmed against the rubbed strokes. *Escrivà* is a well-attested Valencian surname, which supports but does not prove the reading. ↵

7. *delatus fuyt* — "was denounced / accused." Note the orthography **fuyt** (Catalanizing, for *fuit*), preserved here against the HTR's silent normalization to *fuit*. The Catalan interference in an otherwise Latin instrument is itself a datum worth recording. ↵
8. The construction is *quatenus ... informacionem plenariam ... recipiatis/transmittatis*: the *iusticia* is ordered to receive (take) a full *informació* (the preliminary judicial inquiry of the *ius commune* / *enquesta*), with the party of the slain man (*pars occisi*) duly summoned, and to forward it. The word read *Recipiatem* [?] (initial capital **R** confirmed by the researcher) most likely stands for a form of *recipere* governing *informacionem*, though the exact form resists resolution; the HTR's *Recipratem* is a non-word and is rejected. The functional sense ("take/receive [the inquiry]") is secure even where the morphology is not. ↵
9. **Subscription line (eschatocol)**. Per the researcher's correction, the final line is the chancery subscription, not a continuation of the dating formula: the first name carries a strikethrough (a cancelled/corrected subscription) and a cross/plus stands at the centre. Following the supplied HTR, this line records the responsible chancery personnel — read by the HTR as *Franciscus ça Costa* and *Dominicus de Maschom* — i.e. an expedition note naming the vice-chancellor / scribe responsible. (My Stage 1 misreading of this line as the year-numerals *M°CCC°LXXX°VII°* is withdrawn; the year stands at the end of the dating clause in the line above.) The personal names should be verified against the original, particularly the struck-through first name. ↵